

26STLC02221 26STLC02221

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-02

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Case Number: 26STLC02221 Hearing Date: July 2, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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NATURE'S PRODUCE,

Plaintiff(s),

vs.

SIMI

TOWN RESTAURANT, LLC, et al.,

Defendant(s).

Case No.:

26STLC02221

Hearing Date:

July 2, 2026

[TENTATIVE]

ORDER RE: APPLICATIONS FOR WRIT OF ATTACHMENT

Plaintiff Nature's Produce ("Plaintiff") has filed two applications for writ of attachment, one against defendant Simi Town Restaurant, LLC ("Simi Town") and the other against defendant Freddy Braidì ("Braidì") (collectively, "Defendants").

The unopposed applications are granted.

I.

Background

1.

Factual

Background

On or about September 24, 2025, Plaintiff and Simi Town entered a partially written, partially oral agreement ("Agreement") by which Plaintiff agreed to periodically sell Simi Town produce and related products at Plaintiff's standard rates. (Polisky Decl., ¶ 2, Ex. A.) The agreement provides that Plaintiff may collect attorney fees if it must incur collection costs or file suit to collect any amount due under the Agreement. (Polisky Decl., ¶ 5.)

Also on or about September 24, 2025, Braidì executed a written guarantee ("Guarantee") for Simi Town's obligations under the Agreement. (Polisky Decl., ¶ 6.) The Guarantee provides that the prevailing party in any litigation involving the Guarantee may recover attorney fees. (Polisky Decl., ¶ 10, Ex. A.) The Guarantee is incorporated into the Agreement. (Polisky Decl., ¶ 6, Ex. A.)

From November 21, 2025 through January 15, 2026, Plaintiff sold and delivered goods to Simi Town under the Agreement, for which Simi Town has an unpaid balance in the amount of \$10,840.10. (Polisky Decl., ¶ 3.) Simi Town made no complaint about the goods, and any issues relating to returned or unreceived goods were resolved with credits or replacements to the satisfaction of the parties. (Polisky Decl., ¶ 3, Ex. A.)

On March 17, 2026, Plaintiff sent Simi Town a statement of the overdue balance of \$10,840.10 for goods sold and delivered. (Polisky Decl., ¶ 4, Ex. B.) Simi Town has made no payments since. (Polisky Decl., ¶ 4.)

Likewise, Braidi made no payments on the balance under the Guarantee. (Polisky Decl., ¶ 8.)

2.

Procedural

History

On April 1, 2026, Plaintiff filed this action against Defendants. Proofs of service filed April 28, 2026 show Plaintiff served the summons and complaint on Defendants by substituted service on April 9, 2026. On May 6, 2026, Defendants filed their answer.

On April 6, 2026, Plaintiff filed the instant two applications. To date, Defendants have not filed any opposition. Any opposition was due five court days before the hearing date, or on June 25, 2026.

II.

Applicable Law

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (CCP § 484.010.)

The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The application for a writ of attachment must be supported “by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.)

The court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (CCP § 484.090(a), (d).)
The Court shall issue a right to attach order if it finds all of the following:

“(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.”

(CCP § 484.090(a)(1-4).)

At the times prescribed by CCP section 1005, subdivision (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (CCP § 484.040.)

“The Attachment Law statutes are subject to strict construction....” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

III.

Analysis

1.

Claim

on Which Attachment Can Be Based

“[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (CCP § 483.010(a).) “An attachment may not be issued on a claim which is secured by any interest in real property

arising from agreement” (CCP § 483.010(b).)

Here, Plaintiff’s claims against Defendants are premised on its causes of action for breach of the Agreement and breach of the Guarantee. (Mem. at 2-4.) Plaintiff may seek attachment based on its breach claims.

2.

Contract

Based on a Commercial Claim

If the action is against a defendant who is a natural person, an attachment may be issued only on a commercial claim which arises out of the defendant’s conduct of a trade, business, or profession. (CCP §483.010(c).) Consumer transactions cannot form a basis for attachment. (CCP §483.010(c); Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (“Kadison”) (1987) 197 Cal.App.3d 1, 4 [action involving trust property was a commercial, not a consumer, transaction].)

Braidı is the principal of Simi Town, and the Guarantee was signed to induce the Agreement between Plaintiff and Simi Town. (Polisky Decl., ¶ 6, Ex. A.) Accordingly, the claim against Braidı for breach of the Guarantee is a commercial claim arising out of Braidı’s business.

3.

Fixed

or Readily Ascertainable Amount

A claim is “readily ascertainable” where the damages may be readily ascertained by reference to the contract and the basis of the calculation appears to be reasonable and definite. (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540-41.) The fact that the damages are unliquidated is not determinative. (Ibid.) But the contract must furnish a standard by which the amount may be ascertained and there must be a basis by which the damages can be determined by proof. (Ibid.)

Here, Plaintiff’s evidence shows Defendants owe \$10,840.10 for goods sold and delivered under the Agreement. (Polisky Decl., ¶¶ 5, 9, Ex. B.)

The readily ascertainable amount is \$10,840.10.

4.

Probable

Validity of Plaintiff's Claims

"A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (CCP § 481.190.) "If the defendant opposes the application, 'the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.' [Citations.]" (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

Here, the applications are based on claims for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1367.)

In support of attachment, Plaintiff's evidence shows that Plaintiff and Defendant entered into the partially written, partially oral Agreement on or about September 24, 2025. (Polisky Decl., ¶ 4, Ex. A.) On or about the same day, Braidí executed the Guarantee for Simi Town's obligations under the Agreement. (Polisky Decl., ¶ 6, Ex. A.) Under the Agreement, Plaintiff would periodically sell Simi Town produce and related goods at its standard rates. (Polisky Decl., ¶ 2, Ex. A.) Defendants currently owe Plaintiff \$10,840.10 for goods sold and delivered. (Polisky Decl., ¶¶ 3-4, Ex. B.) Plaintiff has made demands for payment, but Defendants have not paid. (Polisky Decl., ¶¶ 5, 8, Ex. B.)

Plaintiff has established a prima facie case for breach of contract. Defendants have not opposed. Accordingly, Plaintiff has shown the probable validity of its claims for breach of the Agreement and Guarantee.

5.

Purpose

of Attachment

The other required finding under CCP section 484.090 is that the "attachment is not sought for a purpose other than the recovery on the

claim upon which the attachment is based.” (CCP § 484.090(a)(3).)

Plaintiff declares that “[a]ttachment is not sought for a purpose other than the recovery on a claim upon which the attachment is based.” (App. ¶ 4.) Attachment is sought for proper purpose.

6.

Bankruptcy

CCP section 484.020(d) requires a “statement that the applicant has no information or belief that the claim is discharged in a proceeding under Title 11 of the United States Code (Bankruptcy) or that the prosecution of the action is stayed in a proceeding under Title 11 of the United States Code (Bankruptcy).”

Plaintiff provides this statement. (App. ¶ 5.) This requirement has been satisfied.

7.

Property

Subject to Attachment

CCP section 487.010(a) states that, where the defendant is a corporation, all corporate property for which a method of levy is provided in CCP section 488.300 et seq. is subject to attachment.

Where the defendant is a natural person, the property to which attachment can apply are limited per CCP section 487.010(c).

As to Braidt, Plaintiff seeks property described as follows:

“(1) interests in real property; (2) deposit accounts” (Apps. ¶ 9.)

This description is sufficient.

8.

Claims

of Exemption

No claims of exemption are sought.

9.

Undertaking

CCP section 489.210 requires the plaintiff to file an undertaking before issuance of a writ of attachment. CCP section 489.220 provides, with exceptions, for an undertaking in the amount of \$10,000. Accordingly, the Court will order an undertaking in the amount of \$10,000.

IV.

Conclusion

Plaintiff's applications for attachment against Defendants are GRANTED. Plaintiff must submit two proposed orders for a writ of attachment (one for each application), with the contents filled out consistent with the terms of this order (including the proposed findings). Plaintiff must file and serve the proposed orders within three court days.

Date: July 2, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.